

TENTATIVE RULING:

Plaintiff Mihaela Crossman dismissed this case without prejudice on March 3, 2026. This CMC is vacated. Line 15 is vacated. No appearance is required at the hearing on March 11, 2026.

3. 9:00 AM CASE NUMBER: C25-00711

CASE NAME: ROBERT MURLEY VS. ROBERT RICHIE

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This CMC is continued to August 3, 2026 at 8:30 a.m. No appearance is required on March 11, 2026.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-00908

CASE NAME: ABDO NASSER VS. DOES 1 TO 50

***HEARING ON MOTION IN RE: LEAVE TO FILE CROSS-COMPLAINT**

FILED BY: T-MOBILE USA, INC.

TENTATIVE RULING:

Summary

Defendant T-Mobile USA, Inc. and T-Mobile West LLC's ("T-Mobile") Motion for Leave to File Cross-Complaint filed on December 4, 2025 is unopposed and is **granted** as set forth herein. No appearance is required at the hearing on March 11, 2026.

Defendant MW Cell REIT 1 LLC ("MWC") filed a notice of Non-Opposition. Plaintiff Abdo Nasser ("Plaintiff") did not file a timely opposition.

Analysis

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure of any party to timely oppose this motion is a deemed to be their consent to the granting of this motion.

Ruling

1. T-Mobile's Motion for Leave to file Cross-Complaint against MWC and Plaintiff is **granted**.
2. The Court approves the form of the Proposed order lodged on November 21, 2025, with the following modification: The proposed complaint submitted as Exhibited M to the Declaration

of Jill Jaffe shall be filed with the Court and served no later than March 20, 2026. MWC and Plaintiff shall file a responsive pleading no later than thirty (30) days from the date of service.

3. T-Mobile's counsel shall prepare a proposed order that conforms to the foregoing and e-file it with Court no later than five (5) days from the date of the hearing.
4. No appearance is required at the March 11, 2026 hearing.

5. 9:00 AM CASE NUMBER: C23-01845

CASE NAME: RAUL INIGUEZ VS. FIDENCIO GARCIA

HEARING ON SUMMARY MOTION

FILED BY: ACME BUILDERS, INC.

TENTATIVE RULING:

Before the Court is a motion for summary judgment/adjudication filed by defendant Acme Builders, Inc. On the Court's own motion, the hearing on the motion is **continued to 9:00 a.m. on March 18, 2026.**

6. 9:00 AM CASE NUMBER: C23-02327

CASE NAME: TORSTEN BRUNE VS. ACE ROBEY

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**

FILED BY: ROBEY, ACE

TENTATIVE RULING:

Summary

Plaintiff's counsel, Newmeyer & Dillion LLP, by and through Tara C. Dudum, Esq. and Madison J. Rolapp, Esq., filed a Motion to Be Relieved as Counsel for Plaintiff Ace Robey ("Motion"). The Motion is **granted** as set forth herein.

Background

This is a breach of contract case where Plaintiff Ace Robey alleges a breach of contract for commercial space. There are also certain cross-allegations involving a 1972 Fiat car.

Plaintiff's counsel, Tara C. Dudum, filed a Motion to Be Relieved as Counsel on December 12, 2026, supported by her declaration claiming that "Irreconcilable differences have arisen resulting in a breakdown of attorney-client communications making it unreasonably difficult to continue representing the client." The trial for this case is set for July 20, 2026. An issue conference is scheduled for June 4, 2026.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for